

25STCV09121 25STCV09121

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Case Number: 25STCV09121 Hearing Date: September 1, 2026 Dept: 506

SUPERIOR
COURT OF THE STATE OF CALIFORNIA

FOR THE
COUNTY OF LOS ANGELES - CENTRAL DISTRICT

BRANDON D. HALL, et al.,

Plaintiffs,

vs.

GENERAL MOTORS, LLC,

Defendant.

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CASE NO.: 25STCV09121

[TENTATIVE] ORDER DENYING PLAINTIFFS' MOTION
FOR STAY; SUSTAINING DEFENDANT'S DEMURRER

Dept. 506

8:30 a.m.

September 1, 2026

On

March 27, 2025, Plaintiffs Brandon D. Hall and Angela T. Hall filed this action against Defendant General Motors LLC arising from Plaintiffs' purchase of an allegedly defective vehicle. On August 26, 2025, Plaintiffs filed a first amended complaint ("FAC").

On

September 29, 2025, Defendant filed a demurrer.

On

June 23, 2026, Plaintiffs filed a motion for a stay of all proceedings.

MOTION
FOR STAY

Plaintiffs

request a stay of all proceedings pending the Court of Appeal's decision in Price v. General Motors (Case No. B353231).

According to Plaintiffs, "Price will decide a novel legal issue that

is implicated in this case: whether a manufacturer's post-filing election into the Song-Beverly Act's new procedural regime can retroactively time-bar a complaint that was already on file when the new statutes of repose and limitations took effect." (Motion at p. 3.) Plaintiffs assert that "[e]xpending judicial resources to resolve a novel issue that has already divided trial courts and that will be conclusively determined by an appellate court already considering the matter would amount to an advisory opinion—an unnecessary expenditure of time and effort by this Court, counsel, and the parties alike." (Id. at p. 4.)

The Price appeal is still in its early stages. The appeal was filed on March 20, 2026, and the opening brief was just due on August 31, 2026, after a stipulation to extend time. There is no public timeline for when the action will be fully briefed, set for argument, and decided. Even then, it is possible that the appeal is dismissed at some point or that the opinion is unpublished and nonbinding. The Court will not delay this action for an indeterminate period of time, especially when the motion appears to be a strategic move to revive Plaintiffs' claims: it was filed on the same day that Plaintiffs' opposition to a potentially dispositive demurrer was due.

The motion to stay is DENIED.

DEMURRER

A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context, accepting the alleged facts as true. (Nolte v. Cedars-Sinai Medical Center (2015) 236 Cal.App.4th 1401, 1406.)

A. Plaintiff's First, Second, and Third Causes of Action Are Time-Barred.

Defendant argues that the statute of limitations and the statute of repose bar Plaintiffs' first, second, and third causes of action for breach of express warranty. (Demurrer at pp. 9-11.)

An action covered by Code of Civil Procedure section 871.20 must be filed within one year after the expiration of the applicable express warranty

and not more than six years after the vehicle's original delivery date, unless tolling provisions apply. (Code Civ. Proc., § 871.21.) This includes actions for restitution or replacement of a motor vehicle or for civil penalties. (Code Civ. Proc., § 871.20, subd. (a).)

The

Complaint alleges that Plaintiffs entered into a warranty contract (i.e. the purchase or lease date) for the Subject Vehicle on November 19, 2017. (Complaint ¶ 6.) This action was not filed until March 27, 2025—more than six years later. Thus, under this statute, Plaintiffs' express warranty claims are barred.

In opposition,

Plaintiffs argue that section 871.21 cannot be applied retroactively here, citing *Rosefield Packing Co. v. Superior Court in and for City and County of San Francisco* (1935) 4 Cal.2d 120 (Rosefield). (Opposition at pp. 4-7.)

As a preliminary matter, “[i]n California, statutes of limitations, being procedural, are normally retroactively applied to accrued causes of action.” (*Aronson v. Superior Court* (1987) 191 Cal.App.3d 294, 297.) In fact, the court in *Aronson* was confronted with a newly enacted statute which shortened the limitations period. The court focused exclusively on the narrow question of the constitutionality of enforcing a reduction in the limitations period for medical malpractice from four years to three years. The court confirmed the rule that “retrospective application of a shortened limitations period is permissible provided the party has a reasonable time to avail himself of his remedy before the statute cuts off his right” and affirmed a dismissal of the action where the plaintiff was allowed a reasonable time to sue. (*Id.* at pp. 297-300.)

Rosefield involved

a statute expressly made retroactive to apply to actions that had already been commenced. After noting that the Legislature may shorten statutes of limitations and make them applicable to pending proceedings, the court stated, “[W]here the change in remedy, as, for example, the shortening of a time limit provision, is made retroactive, there must be a reasonable time permitted

for the party affected to avail himself of his remedy before the statute takes effect. If the statute operates immediately to cut off the existing remedy, or within so short a time as to give the party no reasonable opportunity to exercise his remedy, then the retroactive application of it is unconstitutional as to such party. [Citation.]” (Rosefield, supra, 4 Cal.2d at pp. 122-123.) The court held that a year was “no doubt” a reasonable time and noted that “[m]uch shorter periods have been upheld. [Citations.]” (Id. at p. 123.)

Further, at issue here is not a statute of limitations, but a statute of repose. “‘Unlike an ordinary statute of limitations which begins running upon accrual of the claim, [the] period contained in a statute of repose begins when a specific event occurs, regardless of whether a cause of action has accrued or whether any injury has resulted.’ [Citation.]” (Giest v. Sequoia Ventures, Inc. (2000) 83 Cal.App.4th 300, 305.) And “[w]hereas statutes of limitations affect a remedy, statutes of repose extinguish a right of action after the period has elapsed. [Citations.]” (PGA West Residential Assn., Inc. v. Hulven Internat., Inc. (2017) 14 Cal.App.5th 156, 177.)

Here, AB 1755 became law on September 29, 2024 but did not go into effect until January 1, 2025. Thus, litigants were given three months to bring their claims that would otherwise be subject to the statute of repose. Under the circumstances, this three-month period constitutes reasonable time to bring a claim in the context of a long statute of repose of six years. (Cf. Coachella Valley Mosquito & Vector Control Dist. v. California Public Employment Relations Bd. (2005) 35 Cal.4th 1072, 1092.)

Next, Plaintiffs argue that Defendant’s ability to invoke section 871.21’s statutes of repose is contingent on whether it opted into the new procedures under section 871.29. (Opposition at pp. 6-7.) The parties agree on this point. However, Plaintiffs’ argument continues that the law applicable to the opt-in process was amended under Senate Bill No. 26, and those amendments will not become effective until July 1, 2025; as such, actions commenced prior to July 1, 2025, are not affected by section 821.21’s statutes of repose. (Id. at pp. 6-7.)

Plaintiffs’ interpretation of section 871.29 is contrary to the plain language of the statute. Plaintiffs rely entirely on the single statement of a California Senator, recorded in the California Legislative Counsel’s Digest: “This bill [SB 26] would provide that certain procedures described above

would instead become operative on July 1, 2025.” (Opposition at p. 6, emphasis added.)

Importantly, this July 1, 2025 effective date was applied only to specific provisions. Specifically, SB 26 amended section 871.24 to expressly state, “This section shall become operative on July 1, 2025.” Tellingly, no such similar language is contained in sections 871.21, 871.29, or 871.30. Thus, Plaintiffs’ assertion that these provisions therefore became effective only as of July 1, 2025 is not supported by legislative history or the plain language. Rather, section 871.21 was enacted as part of AB 1755, and it became effective on January 1, 2025.

With respect to the provisions cited by Plaintiffs, SB 26 added section 871.29 to require an auto manufacturer to opt into the AB 1755 procedures every five years. SB 26 added section 871.30 to provide a one-time opt-in for all vehicles sold prior to 2026.

The negative framing of this provision carves out actions filed between January 1, 2025, and April 2, 2025, where a manufacturer opts-out. (Code Civ. Proc., § 871.30, subd. (c) [“Unless a manufacturer has made the election described in subdivision (a), Sections 871.20 to 871.28, inclusive, shall not apply to an action described in subdivision (a) of Section 871.20, including actions already filed between January 1, 2025 and the effective date of the act adding this section, with respect to all of its vehicles sold new in the year 2025 and in all prior years.”].) Said another way, this provision clarifies that unless a manufacturer opts in, then sections 871.20 to 871.28 will not apply to legal actions involving that manufacturer’s vehicles that were sold new in 2025 or earlier, including actions that were filed between January 1, 2025 and the “effective date of act adding this section.” Plaintiffs’ interpretation would render this subdivision meaningless.

Thus, section 871.21 was in effect at the time Plaintiffs filed this action and there is no argument that Defendant did not opt into the provisions of section 871.30.

Finally, Plaintiffs argue that the claims were tolled. Specifically, Plaintiffs argue the claims were tolled by Plaintiffs’ delayed discovery of Defendant’s breaches of the warranty. (Opposition at pp. 7-9.)

First,

the statute provides specific circumstances that toll this statute of repose: (1) pursuant to section 1793.22, subdivision (c); (2) for the time the vehicle is out of service for repair for any nonconformity; and (3) for the time period after a pre-suit notice is provided to the manufacturer per section 871.24, not to exceed 60 days. (Code Civ. Proc., § 871.21, subd. (c).)

Defendant

argues that these are the only grounds for tolling. (Reply at pp. 4-7.) Unlike in other statutory circumstances, section 871.21 does not contain express language indicating that the list is exclusionary. (See, e.g., *McDonald v. Antelope Valley Community College Dist.* (2008) 45 Cal.4th 88, 105 [discussing how Code of Civil Procedure sections 340.6 and 366.2 each contain an exhaustive list of bases for tolling the statute of limitations provided].) Moreover, even in the absence of an express prohibition, a court may conclude that either the text of a statute or a manifest legislative policy underlying it cannot be reconciled with permitting equitable tolling. (See *Lantzy v. Centex Homes* (2003) 31 Cal.4th 363, 371 (*Lantzy*).)

In

Lantzy, for example, the “structure and tone” of the text of Code of Civil Procedure section 337.15 suggested equitable tolling should not apply. (*Lantzy*, *supra*, 31 Cal.4th at p. 373.) The sheer length of the limitations period in question—10 years—likewise suggested a legislative intent to preclude equitable tolling. (*Id.* at p. 379.) Perhaps of greatest significance, however, the legislative history reflected a clear intent to adopt a statute of limitations that would curtail the “indefinite ‘long tail’ defect liability” that made it difficult for participants in the construction industry to obtain affordable insurance. (*Id.* at pp. 374-376,; see *Beal Bank, SSB v. Arter & Hadden, LLP* (2007) 42 Cal.4th 503, 509-511 [where the limitations period was intended to curtail specific insurance problems in an industry arising from open-ended liability, the statute should be interpreted in favor of limited tolling].)

Under the circumstances here, the Court concludes

that is the Legislature desired to apply additional tolling doctrines to the new six-year statute of repose applicable to Song-Beverly claims, it could and would have expressly done so. (See *Gikas v.*

Zolin (1993) 6 Cal.4th 841, 852 [“The expression of some things in a statute necessarily means the exclusion of other things not expressed.”].) That is, that the Legislature did not provide for any additional tolling mechanisms and the context of its passage suggests it

did not intend any additional tolling mechanisms.

In

particular, legislative history supports limits on tolling. The bill's author noted that "in recent years

a flurry of civil actions have been filed under the lemon law statutes and now discovery

disputes and protracted settlement processes are serving to delay the courts processing

of these cases. As a result California consumers

are being denied justice and automobile manufacturers are facing significant legal

uncertainty." (California Bill Analysis,

A.B. 1755 Assem., 8/26/2024.) "AB 1755 is

a compromise measure between consumer advocates and automobile manufacturers that

seeks to break the civil litigation log jam currently plaguing lemon law disputes." (California Bill Analysis, A.B. 1755 Assem., 8/26/2024.) The analysis continues: "First, the bill constricts

the timeline for bringing such actions. It

requires such actions to be commenced within one year after the expiration of the

applicable express warranty, but in no case to be brought more than six years after

the date of original delivery, subject to specified tolling." (California Bill Analysis, A.B. 1755 Assem., 8/26/2024.) Further, for context, "statutes of repose are

generally not subject to tolling." (MACH-1

RSMH, LLC v. Darras (2024) 103 Cal.App.5th 1288, 1302.)

Finally,

there are no factual allegations in the Complaint to support any of the three tolling

provisions provided for in section 871.21.

The

demurrer to the first, second, and third causes of action is sustained.

B. Plaintiffs' Fourth Cause of Action is

Time-Barred.

Defendant

argues that the fourth cause of action for breach of implied warranty is time-barred. (Demurrer at p. 12.)

An

implied warranty claim is governed by the four-year statute of limitations period

of California's Uniform Commercial Code section 2725. (Mexia v. Rinker Boat Co., Inc. (2009)

174 Cal.App.4th 1297, 1305-1306 (Mexia).) "A cause of action accrues when the breach occurs,

regardless of the aggrieved party's lack of knowledge of the breach. A breach of warranty occurs when tender of delivery

is made, except that where a warranty explicitly extends to future performance of

the goods and discovery of the breach must await the time of such performance the cause of action accrues when the breach is or should have been discovered.” (Comm. Code, § 2725, subd. (2).) In contrast to an express warranty, “an implied warranty . . . is not a warranty that ‘explicitly extends to future performance of the goods’ [Citations.]” (Cardinal Health 301, Inc. v. Tyco Electronics Corp. (2008) 169 Cal.App.4th 116, 134 (Cardinal Health 301).) “The implied warranty of merchantability may be breached by a latent defect undiscoverable at the time of sale.” (Mexia, supra, 174 Cal.App.4th at p. 1304.) “In the case of a latent defect, a product is rendered unmerchantable, and the warranty of merchantability is breached, by the existence of the unseen defect, not by its subsequent discovery. . . . Thus, although a defect may not be discovered for months or years after a sale, merchantability is evaluated as if the defect were known” (Id. at p. 1305.)

Defendant

argues that any breach of the implied warranty occurred at the time of purchase on November 19, 2017, and the statute of limitations ran four years later, on November 19, 2021. (Demurrer at p. 14.) Plaintiffs filed this action over three years later, on March 27, 2025.

In

opposition, Plaintiffs argue that a claim can be tolled by delayed discovery or fraudulent concealment. (Opposition at pp. 10-12.) But Plaintiffs cite cases that are either nonbinding federal orders or do not involve the statute of limitations for implied warranties. (Ibid.) Plaintiffs do not refute that the cause of action accrued when the breach occurred (when tender of delivery was made), and that an implied warranty does not explicitly extend to future performance of the goods. (See Comm. Code, § 2725, subd. (2); Cardinal Health 301, supra, 169 Cal.App.4th at p. 134.)

The

demurrer to the fourth cause of action is sustained.

C. Plaintiffs’ Fifth Cause of Action Is Not
Facially Time-Barred.

Defendant

argues that the fifth cause of action is barred by the three-year statute of limitations. (Demurrer at pp. 12-13; see Code Civ. Proc., § 338, subd. (d).)

To

sustain a demurrer on the statute of limitations, the running of the statute must appear clearly and affirmatively on the face of the complaint. (*Geneva Towers Ltd. Partnership v. City of San Francisco* (2003) 29 Cal.4th 769, 781.)

“[I]t is not enough that the complaint might be time-barred. [Citation.]”

(*Ibid.*)

Plaintiffs

allege that “the running of the limitation periods have been tolled by, inter alia, the following doctrines or rules: equitable tolling, the discovery rule, equitable estoppel, the repair rule, and/or class action tolling (e.g., the American Pipe rule).” (FAC ¶ 36.)

“The

general rule is that the statute of limitations begins to run when the wrongful act is done, even though the plaintiff is ignorant of his or her cause of action or of the identity of the wrongdoer.” (Snow

v. A. H. Robins Co. (1985) 165 Cal.App.3d 120, 127.) The running of the statute of limitations may

be postponed on certain causes of action until the time of discovery of the facts. (*Ibid.*) “With respect to actions based on fraud, the statute

of limitations is tolled whenever plaintiff is able to show the defendant fraudulently

concealed facts which would have led him to discover his potential cause of action.” (*Id.* at pp. 127-128.)

Plaintiffs

allege that the parties entered into a warranty contract on November 19, 2017. (FAC ¶ 6.)

Before Plaintiffs purchased the vehicle, Defendant knew about the Transmission

Defect. (E.g., FAC ¶¶ 77-78.) “Plaintiffs discovered Defendant’s wrongful conduct

alleged herein shortly before the filing of the complaint” on March 27, 2025. (FAC ¶ 37.)

The

Complaint does not facially show that the statute of limitations bars this cause of action. It is not clear from the face

of the Complaint when Plaintiffs should have discovered that Defendant concealed information about the vehicle’s defects.

The

demurrer is overruled on this ground.

D. Plaintiffs’ Fifth Cause of Action Fails

to Plead Fraud With Specificity.

Defendant

argues that the fifth cause of action for Fraudulent Inducement – Concealment does not allege facts with the requisite specificity. (Demurrer at pp. 13-22.)

Fraud

based on concealment requires that “(1) the defendant must have concealed or suppressed a material fact, (2) the defendant must have been under a duty to disclose the fact to the plaintiff, (3) the defendant must have intentionally concealed or suppressed the fact with the intent to defraud the plaintiff, (4) the plaintiff must have been unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact, and (5) as a result of the concealment or suppression of the fact, the plaintiff must have sustained damage.” (Bigler-Engler v. Breg, Inc. (2017) 7 Cal.App.5th 276, 310-311 (Bigler-Engler).) “Even under the strict rules of common law pleading, one of the canons was that less particularity is required when the facts lie more in the knowledge of the opposite party.” (Alfaro v. Community Housing Improvement System & Planning Assn., Inc. (2009) 171 Cal.App.4th 1256, 1384.)

An

essential element of intentional concealment includes the duty to disclose, which must be based upon a transaction, or a special relationship, between plaintiff and defendant. (Id. at p. 314.) “There are ‘four circumstances in which nondisclosure or concealment may constitute actionable fraud: (1) when the defendant is in a fiduciary relationship with the plaintiff; (2) when the defendant had exclusive knowledge of material facts not known to the plaintiff; (3) when the defendant actively conceals a material fact from the plaintiff; and (4) when the defendant makes partial representations but also suppresses some material facts.’”

(Id. at p. 311.) “[O]ther than the first instance, in which there must be a fiduciary relationship between the parties, ‘the other three circumstances in which nondisclosure may be actionable presuppose[] the existence of some other relationship between the plaintiff and defendant in which a duty to disclose can arise. . . . “[W]here material facts are known to one party and not to the other, failure to disclose them is not actionable fraud unless there is some relationship between the parties which gives rise to a duty to disclose such known facts.” [Citation.]’ [Citation.]”

(Hoffman v. 162 North Wolfe LLC (2014) 228 Cal.App.4th 1178, 1187

(Hoffman).) “Such a transaction must

necessarily arise from direct dealings between the plaintiff and the defendant;

it cannot arise between the defendant and the public at large.” (Bigler-Engler, supra, 7 Cal.App.5th at p. 312.)

Plaintiffs allege that Defendant knew about the Transmission Defect before purchasing the vehicle. (FAC ¶ 77; see FAC ¶ 78 [listing defects].) Plaintiffs did not know about these defects and problems, and Defendant, who had superior knowledge of the defect, did not disclose the defects when Plaintiff purchased the vehicle. (E.g., FAC ¶¶ 83-86.) These allegations are specific enough to allege the information that was concealed and the danger posed. (See Jones v. ConocoPhillips Co. (2011) 198 Cal.App.4th 1187, 1199-1200.)

However, Plaintiffs do not allege facts showing the existence of a relationship between the parties that gives rise to a duty to disclose facts. (See Hoffman, supra, 228 Cal.App.4th at p. 1187.) Plaintiffs allege that Defendant “acquired its knowledge of the Transmission Defect and its potential consequences prior to Plaintiffs acquiring the subject vehicle, though sources not available to consumers such as Plaintiffs.” (FAC ¶ 83.) There are no facts showing that Defendant’s knowledge was exclusive or that Defendant intended to defraud. Indeed, Plaintiffs allege that there were prior customer complaints, suggesting that the knowledge was in fact public. (FAC ¶ 83.)

Moreover, in a transaction that does not involve fiduciary or confidential relations, the “transaction must necessarily arise from direct dealings between the plaintiff and the defendant; it cannot arise between the defendant and the public at large.” (Bigler-Engler, supra, 7 Cal.App.5th at pp. 311-312.) Plaintiffs allege no such direct transaction with and direct concealment by Defendant.

Additionally, Plaintiffs fail to allege any independent duty or harm beyond the terms of the contractual relationship, and only economic damages from breach of warranty are alleged. Plaintiffs’ only alleged harm is the economic harm from the purchase of the vehicle, which was within the reasonable contemplation of the parties when they entered into the agreement. (See Rattagan, supra, 17 Cal.5th at p. 38.)

The demurrer to the fifth cause of action is sustained.

E. Conclusion

The

demurrer is SUSTAINED without leave to amend.

Plaintiffs did not show how they can amend the complaint to remedy the deficiencies.

Accordingly,

this action is DISMISSED WITH PREJUDICE.

(See Metabyte, Inc. v. Technicolor S.A. (2023) 94 Cal.App.5th 265,

275 (“a dismissal without prejudice is not available if the demurrer is sustained

without leave to amend”].)

Parties

who intend to submit on this tentative must send an email to the Court at

indicating intention to submit. If all parties

in the case submit on the tentative ruling, no appearances before the Court are

required unless a companion hearing (for example, a Case Management Conference)

is also on calendar.

Dated this 1st day of September 2026

Hon. Thomas D. Long

Judge of the Superior

Court